



U.S. Department
of Transportation

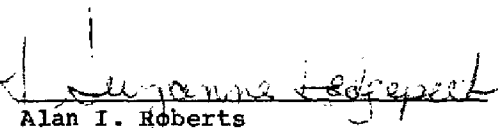
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8180 (EXTENSION)
FIRST REVISION February 8, 1983
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8180 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to May 31, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105 and the public proceeding thereon. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUL 3 1991
(DATE)

Dist: FHWA FRA

EXEMPTION HOLDER

APPLICATION DATE

Dow Corning Corporation
Midland, MI

May 2, 1991

Liquid Carbonic Specialty Gas Corporation
Chicago, IL

May 13, 1991



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 15 1994

DOT-E 8180
(SECOND REVISION)

1. Dow Corning Corp., (DCC), Midland, Michigan, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a Class 8 material and a Division 4.3 liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification steel drums, and provides no relief from any regulation other than as specifically stated. Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Dow Corning Corporation's application dated July 12, 1994, submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Silicon tetrachloride, classed as class 8 (UN 1818) and Trichlorosilane, classed as Division 4.3 (UN 1295).

4. PROPER SHIPPING NAME (49 CFR 172.101). Silicon tetrachloride, or Trichlorosilane, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.119(m), 173.136(a)(3) and 173.247(a)(7).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle and rail freight.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a non-DOT specification steel drum manufactured by Saracro Tank and Manufacturing Corporation in general compliance with Fairchild's drawing dated September 15, 1967, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). Capacity of the drum not to exceed 55 gallons. Any change to the drawing or drum description contained in the letter of November 7, 1978, must be approved by the OHMEA.

8. SPECIAL PROVISIONS.

a. Persons who receive the packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

NOV 15 1994

Continuation of 2nd Rev. DOT-E 8180

Page 2

b. Shippers using the packaging covered by this exemption must comply with all provisions of this exemption, and all other applicable requirements contained in 49 CFR Parts 171-180.

c. No new construction of the packaging identified in paragraph 7 of this exemption is authorized after September 30, 1994. As the holder of the exemption, you may request a renewal to continue the use of the packaging manufactured prior to September 30, 1994. However, the exemption will not carry an expiration date subsequent to September 30, 1996 since use of the packaging is prohibited after that date. This is consistent with the transitional provisions of 49 CFR Section 171.14 and the implementation of the new packaging requirements adopted under Docket HM-181.

9. REPORTING REQUIREMENTS. The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

10. COMPLIANCE. Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation laws:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by 49 CFR 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect unless a regulation has been amended making the exemption no longer necessary. of its number, when the exemption has expired or is otherwise

EXPIRATION DATE. July 31, 1996.

Issued at Wasahington, DC.:

NOV 15 1991

Alan L. Roberts
Alan L. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, DC 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption are
permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA